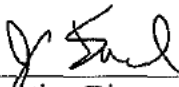


**FIRST ENDORSEMENT**

Executive Director, Civilian Complaint Review Board to Deputy Commissioner Amy J. Litwin, Department Advocate's Office, February 3, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021-24237 against Detective Kevin Earl, Tax Registry No. 958539. The case was conferenced on November 10, 2022, before Assistant Deputy Commissioner of Trials Paul Gamble, who approved the negotiated penalty of a Command Discipline Schedule A with the negotiated penalty of forfeiture of One (1) vacation day.

  
\_\_\_\_\_  
Executive Director  
New York City Civilian Complaint Review Board



**DISPOSITION OF CHARGES**  
PD 468-142(Rev. 8-89)-2

|                                |
|--------------------------------|
| CASE NO.<br>2021-24237         |
| BOOK & PAGE NO.<br>Page 1 of 2 |
| PERSONNEL ORDER NO.            |

|                    |                            |                     |                              |                             |
|--------------------|----------------------------|---------------------|------------------------------|-----------------------------|
| RANK/TITLE<br>DT3  | SURNAME,<br>EARL           | FIRST<br>KEVIN      | M.I.<br>C                    | COMMAND<br>DET SQD. MAN-028 |
| SHIELD NO.<br>1737 | TAX REGISTRY NO.<br>958539 | SOCIAL SECURITY NO. | DATE APPOINTED<br>07/08/2015 |                             |

|                          |         |
|--------------------------|---------|
| RANK/NAME OF COMPLAINANT | COMMAND |
|--------------------------|---------|

|                 |                      |                      |
|-----------------|----------------------|----------------------|
| DATE OF CHARGES | DATE TRIAL COMMENCED | DATE TRIAL CONCLUDED |
|-----------------|----------------------|----------------------|

TRIAL COMMISSIONER

| SPECIFICATION                                                                                                                                                                                                                                                                                                                    | DISPOSITION | RECOMMENDED PENALTY<br>PLEA [X] TRIAL [ ]                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1. Police Officer Kevin Earl, on or about November 30, 2019, at approximately 2000, while assigned to 028 DET and on duty, in the vicinity of in front of § 87(2)(b) New York County, abused his authority as a member of the New York City Police Department, in that he stopped § 87(2)(b) without sufficient legal authority. | DISMISSED   | A - COMMAND DISCIPLINE .00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated.<br>TRAINING .00 - Respondent will comply with and complete re-training prescribed by the Department.<br>VACATION DAYS 1.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated. |
| 2. Police Officer Kevin Earl, on or about November 30, 2019, at approximately 2000, while assigned to 028 DET and on duty, in the vicinity of in front of § 87(2)(b) New York County, abused his authority as a member of the New York City Police Department, in that he frisked § 87(2)(b) without sufficient legal authority. | DISMISSED   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 3. Police Officer Kevin Earl, on or about November 30, 2019, at approximately 2000, while assigned to 028 DET and on duty,                                                                                                                                                                                                       | DISMISSED   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |

*DC Bressio*  
FIRST DEPUTY COMMISSIONER

*3/25/24*  
DATE

**POLICE COMMISSIONER'S APPROVAL**

- ☒ Approved  
☐ Disapproved  
☐ Other Action (Describe)

*Edward A. Caber*  
POLICE COMMISSIONER

*4/30/24*  
DATE



**DISPOSITION OF CHARGES**  
PD 468-142(Rev. 8-89)-2

|                                |
|--------------------------------|
| CASE NO.<br>2021-24237         |
| BOOK & PAGE NO.<br>Page 2 of 2 |
| PERSONNEL ORDER NO.            |

|                                                                                                                                                                    |                            |                      |                                           |                             |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------|----------------------|-------------------------------------------|-----------------------------|
| RANK/TITLE<br>DT3                                                                                                                                                  | SURNAME,<br>EARL           | FIRST<br>KEVIN       | M.I.<br>C                                 | COMMAND<br>DET SQD. MAN-028 |
| SHIELD NO.<br>1737                                                                                                                                                 | TAX REGISTRY NO.<br>958539 | SOCIAL SECURITY NO.  | DATE APPOINTED<br>07/08/2015              |                             |
| RANK/NAME OF COMPLAINANT                                                                                                                                           |                            |                      |                                           | COMMAND                     |
| DATE OF CHARGES                                                                                                                                                    |                            | DATE TRIAL COMMENCED |                                           | DATE TRIAL CONCLUDED        |
| TRIAL COMMISSIONER                                                                                                                                                 |                            |                      |                                           |                             |
| SPECIFICATION                                                                                                                                                      |                            | DISPOSITION          | RECOMMENDED PENALTY<br>PLEA [X] TRIAL [ ] |                             |
| in the vicinity of in front of § 87(2)(b) New York County, was discourteous, in that he told § 87(2)(b) to "shut the fuck up," without sufficient legal authority. |                            |                      |                                           |                             |

DC Braccio 3/25/24  
FIRST DEPUTY COMMISSIONER DATE

**POLICE COMMISSIONER'S APPROVAL**

- ☒ Approved  
☐ Disapproved  
☐ Other Action (Describe)

Edward A. Caber 4/30/24  
POLICE COMMISSIONER DATE

**THIRD ENDORSEMENT**

First Deputy Commissioner to Police Commissioner March 21, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2021-24237 against Detective Kevin Earl, Tax No. 958539, with the recommendation that the Charges and Specifications against Detective Earl be dismissed and that Detective Earl receive a Schedule "A" Command Discipline and forfeit one (1) vacation day and training, as per the negotiated plea agreement, dated October 26, 2022. Former Deputy Commissioner, Trials Paul M. Gamble reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**



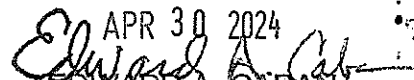
Tania I. Kinsella



**FIRST DEPUTY COMMISSIONER**

TIK/jpc

**APPROVED**



APR 30 2024  
EDWARD A. CABAN  
POLICE COMMISSIONER